
**CITY OF GALLATIN
COUNCIL MEETING**

May 05, 2020

6:00 pm

ELECTRONIC MEETING

Pursuant to Governor Lee's Executive Order No. 16 and the need to limit the community spread of COVID-19, the May 05, 2020 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meeting are available on the City's website.

- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Vice Mayor Camp – Fann – Fennell – Hayes – Love – Overton
- Approval of Minutes: None Provided
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Public Hearing Ordinance No. 02004-15** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 +/- acre parcel, from the A-Agricultural Residential Zoning District to the R15 Medium Density Residential Zoning District, located east of Highway 109 and south of Odoms Bend Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Camp)**
2. **First Reading Ordinance No. 02004-15** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 +/- acre parcel, from the A-Agricultural Residential Zoning District to the R15 Medium Density Residential Zoning District, located east of Highway 109 and south of Odoms Bend Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Camp)**
3. **First Reading Ordinance No. 02005-17** Ordinance to provide revenue for the City of Gallatin Tennessee for municipal purposes for the 2020 tax year and the 2021 fiscal year **(Councilman Alexander)**
4. **First Reading Ordinance No. 02005-18** Ordinance appropriating funds in the amount of \$5,000 for Rose Mont **(Councilman Overton)**
5. **First Reading Ordinance No. 02005-19** Ordinance of the City of Gallatin, Tennessee, adopting the annual budget for the fiscal year beginning July 1, 2020 through June 30, 2021. **(Councilman Hayes)**
6. **Resolution No. R2005-23** Resolution authorizing the Mayor to sign a Water and Sewer Service Contract with Woolhawk LLC **(Councilman Fennell)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING AN APPROXIMATELY 0.73 +/- ACRE PARCEL, FROM THE A-AGRICULTURAL RESIDENTIAL ZONING DISTRICT TO THE R15 MEDIUM DENSITY RESIDENTIAL ZONING DISTRICT, LOCATED EAST OF HIGHWAY 109 AND SOUTH OF ODOMS BEND ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE

WHEREAS, the owner of property has submitted a complete application to rezone a 0.73 +/- acre parcel, located in the Planning Region of City of Gallatin, Tennessee; and

WHEREAS, the proposed zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Emerging Character Area and that the public necessity, convenience, and the general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning will have adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the proposed rezoning will provide opportunities for single-family residential development on the property consistent with housing on adjacent properties and will provide for development to compliment the scale, setbacks and style of existing adjacent homes; and

WHEREAS, the proposed rezoning will be compatible with surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and voted to recommend denial of Ordinance O2004-15 at the March 23, 2020 Planning Commission meeting; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

WHEREAS, the City Council has approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE AS FOLLOWS:

Section 1. The City Council of the City of Gallatin does hereby approve rezoning a 0.73 +/- acre parcel from the A- Agricultural Residential District to the R15 – Medium Density Residential District as described in Exhibits ‘A’ and ‘B.’

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

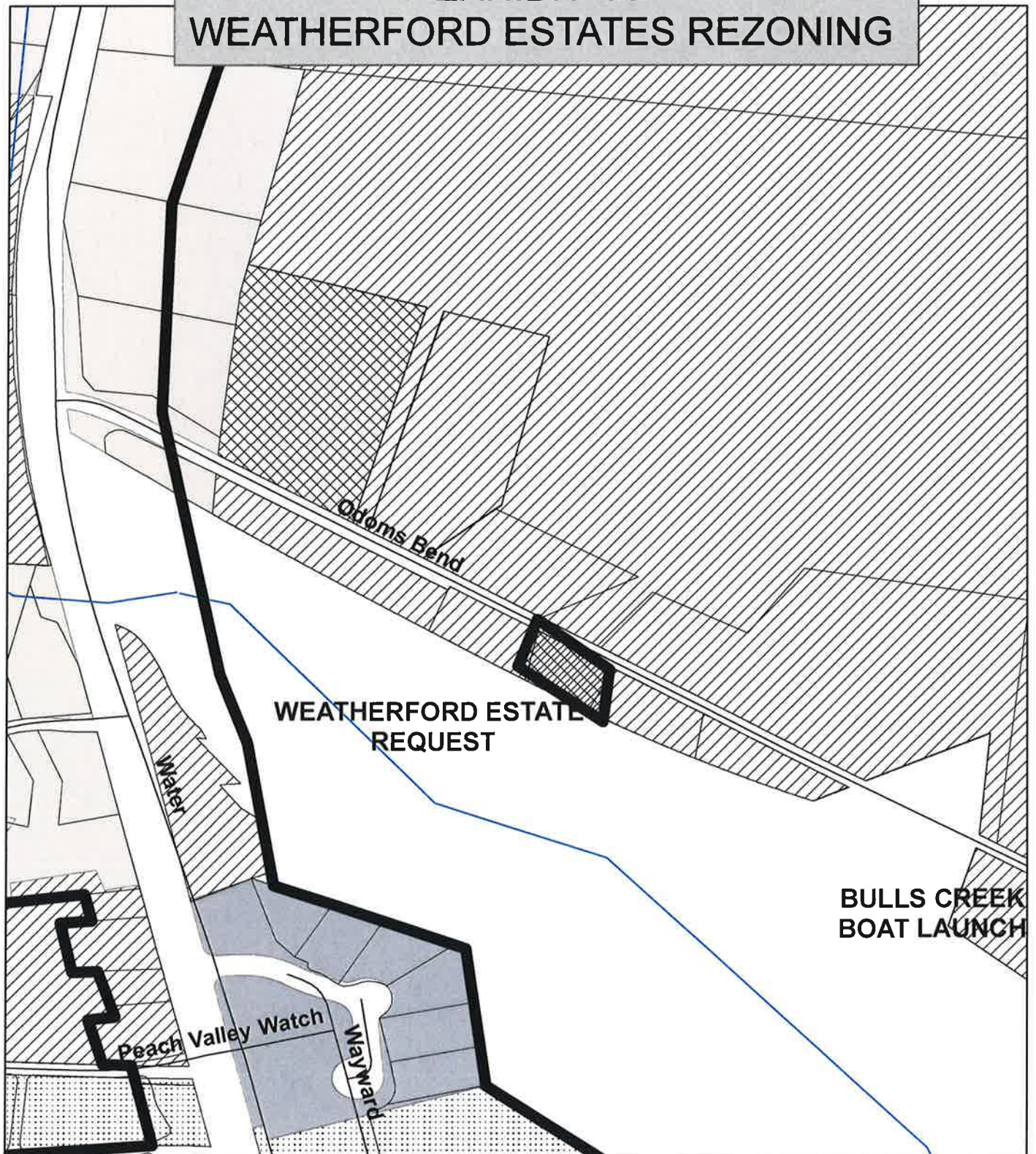
SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit ‘A’ – Location Map of the Property to be rezoned

Exhibit ‘B’ – Legal Description of the Residential-15 (R15) property

EXHIBIT "A"

WEATHERFORD ESTATES REZONING



Legend

	Gallatin City Limits		A
	Weatherford Estate Request		R-40
	Streams		R-20(PUD)
	Railroad		R-15
			PGC
			MUG



0 170 340 680 Feet



DISCLAIMER: This product is for informational purposes and may not have been prepared by the suitable for legal, engineering, or surveying purposes. Users of this information should review or consult the primary data and information sources to ascertain the usability of the information.

EXHIBIT "B"

DESCRIPTION OF THE WEATHERFORD ESTATE PROPERTY: 31,745.4 SQ. FT. +/- TRACT FOR RE-ZONE PURPOSES ONLY

The property described herein is located in the 3rd Civil District of Sumner County, Tennessee; on the south side of Odoms Bend Road; being located approximately 0.24 mile east of the intersection with S. Water Avenue; being Job Number 19258TML as described by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 10th day of February, 2020 in detail as follows:

Beginning at the base of a one quarter inch iron re-bar found, disturbed, on the south right-of-way of Odoms Bend Road, and being found 26 feet from the center of said road, corner of Robert F. Collins, et ux (D.B. 449 P. 94) and being the northwest corner of the herein described tract, thence running with the south right-of-way of Odoms Bend Road S 58 degrees 02 minutes 42 seconds E 280.02 feet to a five-eighths inch iron re-bar found by a wooden corner post on the south right-of-way of Odoms Bend Road, being found 25 feet from the center of said road, northwest corner of John K. Cooper, et ux (R.B. 4390 P. 873), thence leaving said road right-of-way and running with the west line of John K. Cooper, et ux (R.B. 4390 P. 873), S 16 degrees 07 minutes 38 seconds W 102.50 feet to a grader blade found in the north line of U.S. Army Corp. of Engineers Property (Old Hickory Lake), southwest corner of John K. Cooper, et ux (R.B. 4390 P. 873), thence running with the boundary line of U.S. Army Corp. of Engineers Property (Old Hickory Lake) for the next two calls as follows: N 65 degrees 20 minutes 20 seconds W 76.03 feet to a T-bar monument found, thence N 60 degrees 20 minutes 01 second W 216.82 feet to the top of a grader blade, in the north line of U.S. Army Corp. of Engineers Property (Old Hickory Lake), southeast corner of Robert F. Collins, et ux (D.B. 449 P. 94), thence leaving U.S. Army Corp. of Engineers property, and running with the east line of Robert F. Collins, et ux (D.B. 449 P. 94) N 24 degrees 12 minutes 17 seconds E 118.00 feet to the beginning, containing 31,745.4 square feet more or less.....

Surveyor's Notes: 1: This description is provided for re-zoning purposes only and shall not be used for title transfer.

The above described tract of land being the east portion of Lot 2 of tract of land deeded to Roy Weatherford, Jr., and wife, Lois W. Weatherford, as tenants by the entirety, their heirs, and assigns, from Keller M. Anderson, Jr., and wife Cecile J. Anderson of record in Deed Book 171 Pages 486-487, in the Office of the Register for Sumner County, Tennessee.

Tax Map Reference: Map 148 Parcel 62.01



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 14, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 3

SUBJECT:

An Ordinance Of The City Of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 +/- acre parcel, from the A - Agricultural Residential Zoning District to the R15 -Medium Density Residential Zoning District

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 +/- acre parcel, from the A - Agricultural Residential Zoning District to the R15 - Medium Density Residential Zoning District, located east of Highwat 109 and south of Odoms Bend Road; authorizing the revision to be indicated on the official zoning atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

On March 23, 2020, the Gallatin Municipal-Regional Planning Commission voted to recommend denial of the draft Ordinance presented with GMRPC Resolution 2020-046.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 28, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA # 1

SUBJECT:

An Ordinance Of The City Of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 +/- acre parcel, from the A - Agricultural Residential Zoning District to the R15 -Medium Density Residential Zoning District

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning an approximately 0.73 +/- acre parcel, from the A - Agricultural Residential Zoning District to the R15 - Medium Density Residential Zoning District, located east of Highway 109 and south of Odoms Bend Road; authorizing the revision to be indicated on the official zoning atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

After discussion, this item was deferred by the Council Committee at the April 14, 2020 meeting .

On March 23, 2020, the Gallatin Municipal-Regional Planning Commission voted to recommend denial of the draft Ordinance presented with GMRPC Resolution No. 2020-046.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**ORDINANCE TO PROVIDE REVENUE FOR THE CITY OF GALLATIN
TENNESSEE FOR MUNICIPAL PURPOSES FOR THE 2020 TAX YEAR AND THE
2021 FISCAL YEAR**

BE IT ORDAINED by the City of Gallatin, Tennessee, that:

SECTION I. PROPERTY TAX:

A. All property, real, personal or mixed within the corporate limits of said City shall be and is hereby assessed for taxation for municipal purposes for the tax year 2020, except as is exempt from taxation by the Constitution and the laws of the State of Tennessee.

B. The levy be and is hereby made:

(1) to contribute to the general current expenses of said municipality that are paid from the General Fund; and

(2) to provide an amount, totaling \$2,079,050 to contribute to the retiring of the current year's principal and interest obligations; a tax of eighty and one one-hundredth cents (\$0.8001) per every one hundred dollars (\$100.00) of taxable property.

C. All collections of property taxes from levies of past years be collected entirely in, and become revenue of the General Fund and that any expenses incurred in collecting such delinquent taxes be entirely expenses of the General Fund.

D. The Tax Assessor for Sumner County, Tennessee, is hereby authorized to assess all the property lying within the Corporate Limits of the City of Gallatin, Tennessee, and the assessment is hereby adopted as the assessed or taxable value of said property for municipal purposes for the City of Gallatin, Tennessee, upon which shall be levied the tax rate as provided in this ordinance.

SECTION II. BUSINESS TAX: The privilege tax levied by the General Assembly of the State of Tennessee known as the "Business Tax Act" and as amended, be and the same is hereby levied for municipal purposes for the City of Gallatin, Tennessee, for the year 2020 and all arts, trades, callings, or occupations created and declared to be a privilege within the City of Gallatin, and for their exercises within the City of Gallatin, the same taxes are hereby levied and shall be collected for the municipal purposes as are now levied and collected for State purposes under and by virtue of said Act of the General Assembly of the State of Tennessee, as amended.

SECTION III. IN-LIEU TAX: Pursuant to, T.C.A. § 7-34-115, payments in lieu of *ad valorem* taxes shall be paid by municipal utility systems to the municipality in an amount not to exceed the amount of taxes payable on privately owned property of similar nature.

SECTION IV. EFFECTIVE DATE: All laws and ordinances in conflict with this ordinance, be and the same are repealed, and this ordinance shall be effective from and after its passage, the public welfare requiring it.

PASSED FIRST READING:

PASSED SECOND READING:

PASSED THIRD READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY,
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 28, 2020

DEPARTMENT: Mayor Paige Brown

AGENDA # 3

SUBJECT:

FY 2020/2021 Budget Presentation

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☒ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02005-18

**ORDINANCE APPROPRIATING FUNDS IN THE
AMOUNT OF \$5,000 FOR ROSE MONT**

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$5,000 is hereby transferred from the General Government Buildings, Building Maintenance and Repairs, 11041800-266-143, to Rose Mont Community Enhancement grants, 11044300-720-143; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 28, 2020

DEPARTMENT: Councilman Overton

AGENDA # 4

SUBJECT:

Request from Rose Mont Restoration Foundation, Inc. for Funding

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☐ Ordinance

☒ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**ORDINANCE OF THE CITY OF GALLATIN, TENNESSEE,
ADOPTING THE ANNUAL BUDGET FOR THE FISCAL YEAR BEGINNING
JULY 1, 2020 THROUGH JUNE 30, 2021.**

- Whereas, *Tennessee Code Annotated* Title 9 Chapter 1 Section 116 requires that all funds of the State of Tennessee and all its political subdivisions shall first be appropriated before being expended and that only funds that are available shall be appropriated; and
- Whereas, the Municipal Budget Law of 1982 requires that the governing body of each municipality adopt and operate under an annual budget ordinance presenting a financial plan with at least the information required by that state statute, that no municipality may expend any moneys regardless of the source except in accordance with a budget ordinance and that the governing body shall not make any appropriation in excess of estimated available funds; and
- Whereas, the governing body has published the annual operating budget and budgetary comparisons of the proposed budget with the prior year (actual) and the current year (estimated) in a newspaper of general circulation not less than ten (10) days prior to the meeting where the governing body will consider final passage of the budget.

NOW THEREFORE BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE AS FOLLOWS:

- SECTION 1: That the governing body projects anticipated revenues from all sources and appropriates planned expenditures for each department, board, office or other agency of the municipality, herein presented together with the actual annual receipts and expenditures of the last preceding fiscal year and the estimated annual expenditures for the current fiscal year, and from those revenues and unexpended and unencumbered funds as follows for the fiscal year, and including the projected ending balances for the budget year, the actual ending balances for the most recent ended fiscal year and the estimated ending balances for the current fiscal years:

General Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Local Taxes	\$ 24,087,079	\$ 25,347,100	\$ 24,537,830
Licenses and Permits	2,146,030	2,198,950	1,899,850
Intergovernmental Revenue	6,472,621	10,651,722	6,121,874
Charges for Services	2,461,361	2,487,743	2,075,843
Fines and Forfeitures	595,952	561,750	561,750
Uses of Money & Property	1,490,693	363,939	209,875
Miscellaneous Revenue	2,576,085	491,016	77,000
Debt Proceeds	-	-	-
Transfers In from other fund	685,633	890,000	890,000
Total Cash Receipts	\$40,515,454	\$42,992,221	\$36,374,022

Appropriations			
City Administration	\$ 894,742	\$ 3,090,120	1,019,944
Finance	561,397	702,754	707,873
City Recorder	418,967	510,222	519,311
Insurances	915,439	1,379,000	845,000
City Attorney	443,870	529,517	527,878
Information Technology	1,314,394	1,634,808	1,624,691
Human Resources	269,591	298,789	371,042
Engineering	3,342,647	6,683,197	2,423,683
Planning Commission	18,211	34,659	29,714
Planning	466,583	723,397	875,107
Government Buildings	490,468	721,606	455,381
Codes	1,362,283	1,496,097	1,326,828
Police Department	8,613,914	9,585,051	9,595,913
A.C.E.S. Program	97,593	110,000	110,000
Fire Department	7,097,990	8,330,714	7,844,340
Public Works Administration	474,778	500,803	353,696
Street Maintenance	1,718,953	1,661,345	1,491,911
Street Lighting and Signals	-	438,764	480,591
Vehicle Maintenance	617,786	702,057	623,394
Community Enhancement	150,000	171,800	236,000
Community Services	98,925	119,925	28,925
Civic Center	1,420,439	1,905,954	1,561,349
Golf Course	858,913	1,132,984	914,433
Parks	2,031,733	3,845,270	1,776,850
Economic Development	718,402	434,399	383,486
Economic Dev Utility	39,746	474,457	75,000
Tourism	118,268	150,000	25,000
Bond Expenses	2,603,775	2,094,335	2,080,135
Operating Transfers	765,863	-	-
Total Appropriations	\$ 37,925,668	\$ 49,462,025	\$ 38,307,475
Change in Cash (Rec-Exp)	\$ 2,589,786	\$ (6,469,804)	\$ (1,933,453)
Beginning Cash Balance	\$ 15,042,273	\$ 17,632,059	\$ 11,162,254
Ending Cash Balance 6/30	\$ 17,632,059	\$ 11,162,254	\$ 9,228,801
Ending Cash as %	46%	23%	24%

Special Revenue Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Fines and Forfeitures	\$3,450	\$5,000	\$5,000
Donations	23,954	20,000	20,000
Total Cash Receipts	\$27,404	\$25,000	\$25,000
Appropriations			
Office Supplies	\$ 1,586	\$ 5,000	\$ 5,000

Grants & Donations	30,203	20,000	20,000
Total Appropriations	\$ 31,789	\$ 25,000	\$ 25,000
Change in Cash (Rec-Exp)	\$ (4,385)	\$ -	\$ -
Beginning Cash Balance	\$ 2,667,402	\$ 2,663,017	\$ 2,663,017
Ending Cash Balance 6/30	\$ 2,663,017	\$ 2,663,017	\$ 2,663,017
Ending Cash as %	8377%	10652%	10652%

Stormwater Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Stormwater Utility Fee	\$887,109	\$1,775,000	\$1,825,000
Miscellaneous Revenue	350,000	0	0
Total Cash Receipts	\$1,237,109	\$1,775,000	\$1,825,000
Appropriations			
Stormwater Maintenance	\$ 694,401	\$ 870,911	\$ 786,146
Stormwater Administration	\$ 459,008	952,279	967,829
Total Appropriations	\$ 1,153,409	\$ 1,823,190	\$ 1,753,975
Change in Cash (Rec-Exp)	\$ 83,700	\$ (48,190)	\$ 71,025
Beginning Cash Balance	\$ -	\$ 83,700	\$ 35,510
Ending Cash Balance 6/30	\$ 83,700	\$ 35,510	\$ 106,535
Ending Cash as %		2%	6%

IDB/HEHFB Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Payment in Lieu	\$0	\$265,024	\$265,025
Application Fees	0	1,500	1,500
Total Cash Receipts	\$0	\$266,524	\$266,525
Appropriations			
IDB	\$ -	238,673.00	44,970.00
HEHFB		187,451.00	160,290.00
Total Appropriations	\$ -	\$ 426,124	\$ 205,260
Change in Cash (Rec-Exp)	\$ -	\$ (159,600)	\$ 61,265
Beginning Cash Balance	\$ 268,114	\$ 268,114	\$ 108,514
Ending Cash Balance 6/30	\$ 268,114	\$ 108,514	\$ 169,779
Ending Cash as %		25%	83%

Environmental Serv Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Residential Collection	\$ 2,091,843	\$ 2,060,000	\$ 2,060,000
Other Revenue	280	-	-
Sale of Supplies	57,924	60,000	60,000
Debt Proceeds	-	-	-

Transfer fr General Fund	-	-	-
Total Cash Receipts	\$2,150,047	\$2,120,000	\$2,120,000
Appropriations			
Enviro Serv Administration	\$ 100,223	115,000	115,000
Waste Collection	2,131,289	2,209,079	2,024,654
Debt Service	\$ -	-	-
Total Appropriations	\$ 2,231,512	\$ 2,324,079	\$ 2,139,654
Change in Cash (Rec-Exp)	\$ (81,465)	\$ (204,079)	\$ (19,654)
Beginning Cash Balance	\$ 856,782	\$ 775,317	\$ 571,238
Ending Cash Balance 6/30	\$ 775,317	\$ 571,238	\$ 551,584
Ending Cash as %	35%	25%	26%

Drug Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Federal DOJ Equitable Share	\$ 3,651	\$ 18,000	\$ 18,000
Drug Fines	134,185	90,000	90,000
Other Revenue	15,265	-	-
Total Cash Receipts	\$153,101	\$108,000	\$108,000
Appropriations			
Drug Investigation/ Control	\$ 90,558	108,000.00	108,000.00
Total Appropriations	\$ 90,558	\$ 108,000	\$ 108,000
Change in Cash (Rec-Exp)	\$ 62,543	\$ -	\$ -
Beginning Cash Balance	\$ 17,431	\$ 79,974	\$ 79,974
Ending Cash Balance 6/30	\$ 79,974	\$ 79,974	\$ 79,974
Ending Cash as %	88%	74%	74%

Water and Sewer Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Water Sales	\$ 8,701,253	\$ 9,418,500	\$ 9,700,000
Sewer Fees	6,039,817	5,900,000	6,350,000
Tap Fees	741,302	550,000	550,000
Donations	3,260,887	-	-
Miscellaneous	639,737	621,750	636,750
Debt Proceeds	-	-	-
Total Cash Receipts	\$19,382,995	\$16,490,250	\$17,236,750
Appropriations			
Administrative Department	\$ 4,859,973	\$ 1,879,441	\$ 1,245,949
Water Department	5,063,513	6,488,532	4,396,356
Sewer Department	4,389,138	8,363,654	4,019,936
Depreciation Expense	3,476,547	3,428,184	3,428,184
Debt Service	1,241,464	3,045,261	3,036,436

Transfers Out - In Lieu	437,702	559,612	559,612
Total Appropriations	\$ 19,468,338	\$ 23,764,684	\$ 16,686,473
Change in Cash (Rec-Exp)	\$ (85,343)	\$ (7,274,434)	\$ 550,277
Beginning Cash Balance	\$ 19,868,397	\$ 19,783,054	\$ 12,508,620
Ending Cash Balance 6/30	\$ 19,783,054	\$ 12,508,620	\$ 13,058,897
Ending Cash as %	102%	53%	78%

Gas Fund	FY 2019 Actual	FY 2020 Estimated	FY 2021 Proposed
Cash Receipts			
Gas Sales	\$ 15,781,064	\$ 15,525,000	\$ 16,250,000
Miscellaneous	494,795	546,000	546,000
Debt Proceeds	-	-	-
Total Cash Receipts	\$16,275,859	\$16,071,000	\$16,796,000
Appropriations			
Administrative Department	\$ 455,936	\$ 543,837	\$ 542,995
Purchased Gas	9,977,372	11,000,000	10,000,000
Gas Department	5,060,311	4,749,227	2,459,500
Depreciation Expense	1,126,668	900,000	900,000
Debt Service	107,308	390,266	390,788
Transfers Out - In Lieu	337,931	302,664	302,664
Total Appropriations	\$ 17,065,526	\$ 17,885,994	\$ 14,595,947
Change in Cash (Rec-Exp)	\$ (789,667)	\$ (1,814,994)	\$ 2,200,053
Beginning Cash Balance	\$ 8,466,392	\$ 7,676,725	\$ 5,861,731
Ending Cash Balance 6/30	\$ 7,676,725	\$ 5,861,731	\$ 8,061,784
Ending Cash as %	45%	33%	55%

SECTION 2. At the end of the current fiscal year the governing body estimates balances as follows:

Fund	Estimated Fund Balance as of 30-Jun-20
General Fund	\$ 11,662,254
Special Revenue Fund	\$ 2,663,017
Stormwater Fund	\$ 155,510
IDB/HEHFB Fund	\$ 108,514
Environmental Serv Fund	\$ 671,238
Drug Fund	\$ 79,974
Water/Sewer Fund	\$ 13,508,620
Gas Fund	\$ 7,861,731

SECTION 3. That the governing body herein certifies that the condition of its sinking funds, if applicable, are compliant pursuant to its bond covenants, and recognizes that the municipality has bonded and other indebtedness as follows:

Bonded or Other Indebtedness	Debt Authorized and Unissued	Principal Outstanding at June 30, 2020	FY 2021 Principal Payment	FY 2021 Interest Payment
Bonds				
2014 GO Refunding & Imp		\$ 10,365,000	\$ 910,000	\$ 339,850
2016 GO Improvement		\$ 9,185,000	\$ 485,000	\$ 344,200
2011 W/S Rev Ref & Imp		\$ 6,795,000	\$ 430,000	\$ 209,898
2014 W/S Rev Ref & Imp		\$ 3,235,000	\$ 270,000	\$ 123,000
2015 W/S Rev Ref & Imp		\$ 20,420,000	\$ 1,125,000	\$ 877,188
Capital Lease				
EDA Vehicle		\$ 10,530	\$ 7,020	\$ 1,763

SECTION 4. During the coming fiscal year the governing body has pending and planned capital projects with proposed funding as follows:

Proposed Capital Projects	Proposed Amount Financed by Appropriations	Proposed Amount Financed by Debt
Road projects	\$ 1,770,000.00	
Fire engine	\$ 497,000.00	
Police vehicles	\$ 435,000.00	
Stormwater drainage projects	\$ 255,000.00	
Stormwater vehicles/equipment	\$ 130,000.00	
Environmental services vehicles	\$ 150,000.00	

SECTION 5. No appropriation listed above may be exceeded without an amendment of the budget ordinance as required by the Municipal Budget Law of 1982 Tenn. Code Ann. Sec. 6-56-208. In addition, no appropriation may be made in excess of available funds except to provide for an actual emergency threatening the health, property or lives of the inhabitants of the municipality and declared by a two-thirds (2/3) vote of at least a quorum of the governing body in accord with Tenn. Code Ann. Sec. 6-56-205.

SECTION 6. Money may be transferred from one appropriation to another in the same fund only by appropriate ordinance by the governing body, subject to such limitations and procedures as it may describe as allowed by Tenn. Code Ann. Sec. 6-56-209.

SECTION 7. A detailed financial plan will be attached to this budget and become part of this budget ordinance. In addition, the published operating budget and budgetary comparisons shown by fund with beginning and ending fund balances and the number of full time equivalent employees

required by Tenn. Code Ann. Sec. 6-56-206 will be attached.

SECTION 8. This annual operating and capital budget ordinance and supporting documents shall be submitted to the Comptroller of the Treasury or the Comptroller's Designee for approval if the City has debt issued pursuant to Title 9, Chapter 21 of the Tennessee Code Annotated within fifteen (15) days of its adoption. This budget shall not become the official budget for the fiscal year until such budget is approved by the Comptroller of the Treasury or the Comptroller's Designee in accordance with Title 9, Chapter 21 of the Tennessee Code Annotated (the "Statutes"). If the Comptroller of the Treasury or the Comptroller's Designee determines that the budget does not comply with the Statutes, the Governing Body shall adjust its estimates or make additional tax levies sufficient to comply with the Statutes or as directed by the Comptroller of the Treasury or the Comptroller's Designee. If the City does not have such debt outstanding, it will file this annual operating and capital budget ordinance and supporting documents with the Comptroller of the Treasury or the Comptroller's Designee.

SECTION 9. If for any reason a budget ordinance is not adopted prior to the beginning of the next fiscal year, the appropriations in this budget ordinance shall become the appropriations for the next fiscal year excluding capital until the adoption of the new budget ordinance in accordance with Tenn. Code Ann. Sec. 6-56-210, provided sufficient revenues are being collected to support the continuing appropriations. Approval of the Director of the Office of State and Local Finance in the Comptroller of the Treasury for a continuation budget will be requested if any indebtedness is outstanding.

SECTION 10. All unencumbered balances of appropriations remaining at the end of the fiscal year shall lapse and revert to the respective fund balances.

SECTION 11. This ordinance shall take effect on July 1, 2020, the public welfare requiring it.

Passed First Reading:

Passed Second and Final Reading:

Mayor Paige Brown

Approved as to Form: Susan High-McAuley, City Attorney

Attest: Connie Kittrell, City Recorder

(City Seal)

General	
City Administration	1,019,944.00
Finance	707,873.00
City Recorder	519,311.25
Insurances	845,000.00
City Attorney	527,877.50
Information Technology	1,624,690.67
Human Resources	371,042.00
Engineering	2,423,683.00
Planning Commission	29,714.00
Planning	875,107.00
Government Buildings	455,381.00
Codes	1,326,828.20
Police Department	9,595,913.00
A.C.E.S. Program	110,000.00
Fire Department	7,844,340.00
Public Works Administration	353,696.00
Street Maintenance	1,491,911.00
Street Lighting and Signals	480,591.00
Vehicle Maintenance	623,394.00
Community Enhancement	236,000.00
Community Services	28,925.00
Civic Center	1,561,349.00
Golf Course	914,433.00
Parks	1,776,850.00
Economic Development	383,486.00
Economic Development Utility	75,000.00
Tourism	25,000.00
Bond Expenses	2,080,135.00
Operating Transfers	-
SOR	5,000
Police Special	20,000
Stormwater Mainenance	786,146
Stormwater Administration	967,829
IDB	238,673
HEHFB	187,451
Environmental Serv Admin	115,000
Waste Collections	2,024,654
Drug Fund Investigations	108,000

Water/Sewer	
Water Treatment and Pumping	1,914,383
Transmission & Distribution	1,675,901
Customer Accounting	806,072
Administration & General	1,496,383
Depreciation	3,428,184
Bond Expense	3,035,086
Paying Agent	1,350
Sewer Collection/Lines	1,375,913
Sewer System Rehabilitation	508,130
Sewer Treatment & Disposal	2,030,066
Sewer Admin & General	309,178
Sewer Pre-treatment Program	105,827

Gas	
Depreciation	900,000
Bond Expenses	390,788
Purchased Gas	1,000,000
Transmission & Distribution	1,727,242
Customer Accounting	732,258
Administration & General	845,659

Summary of the City Budget
For the Fiscal Year Ending June 30, 2021

	Actual 2018-19	Estimated 2019-20	Estimated 2020-21
GENERAL FUND			
REVENUES			
Local Taxes	24,862,712	26,237,100	25,427,830
State of Tennessee	292,619	2,760,706	932,824
Federal Government	525,091	2,630,016	612,050
Other Sources	15,125,032	11,364,399	9,401,318
Total Revenues	40,805,454	42,992,221	36,374,022
EXPENDITURES			
Salaries	22,555,430	25,702,606	25,545,588
Other Costs	15,406,394	23,759,389	12,854,309
Total Expenditures	37,961,824	49,461,995	38,399,897
Beginning Balances - July 1	14,716,191	17,559,821	11,090,047
Ending Balances - June 30	17,559,821	11,090,047	9,064,172
Employment	461	465	465
DEBT SERVICE FUND within General Fund			
STREET FUND within General Fund			

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 28, 2020

DEPARTMENT: Mayor Paige Brown

AGENDA # 3

SUBJECT:

FY 2020/2021 Budget Presentation

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2005-23

**RESOLUTION AUTHORIZING THE MAYOR TO SIGN A WATER AND
SEWER SERVICE CONTRACT WITH WOOLHAWK LLC**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor of Gallatin is authorized to sign and execute a Water and Sewer Contract with Woolhawk LLC wherein Woolhawk LLC will fund improvements to property outlined in the contract; and

BE IT FURTHER RESOLVED, that this resolution shall take effect from and after its final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

This instrument prepared by:

Sherrard Roe Voigt & Harbison, PLC
150 3rd Avenue South
Suite 1100
Nashville, Tennessee 37201

WATER AND SEWER SERVICE CONTRACT

This Water and Sewer Service Contract (this “Contract”) is made and entered on this _____ day of _____, 2020, by and between the City of Gallatin, a Tennessee Municipal Corporation located in Sumner County, Tennessee and hereinafter referred to as “Gallatin” and Woolhawk LLC, a Delaware limited liability company, hereinafter referred to as “the Customer.”

Witnesseth:

Whereas, the Customer has the right to purchase or otherwise acquire all or part of an interest in undeveloped real property located in the City of Gallatin in Sumner County, Tennessee, as more fully described on Exhibit “A” attached hereto, and hereinafter referred to as the “Property”;

Whereas, if the subject Property is acquired by the Customer, then the Customer has plans to establish on the Property a multi-year large-scale project which may include multiple projects extending over a period of years with uses of one or more data centers, and/or other facilities used to house, and in which are operated, maintained and replaced from time to time, computer systems and associated components, such as telecommunications and storage systems, cooling systems, power supplies and systems for managing property performance (including generators), and equipment used for the transformation, transmission, distribution or management of electricity (including substations), internet-related equipment, data communications connections, environmental controls and security devices, structures and site features, as well as certain

accessory uses or buildings located on the Property and other related or associated uses, buildings or structures such as (but not limited to) utility buildings, structures and appurtenants located on, adjacent or near the Property that are reasonably related to the data center (collectively, as the same may actually be constructed, the “Project”); and

Whereas, Gallatin believes that such a project or development will be beneficial for Gallatin and its citizens, and is in the public interest;

Whereas, the Customer anticipates that the Project will require a long-term commitment of the Customer’s resources, and will require the careful integration between public capital facilities and the development of the Property to be successful, both for the Customer and for Gallatin;

Whereas, development of the Project on the Property will involve a substantial commitment of private capital by the Customer, which commitment the Customer is unwilling to risk without certain assurances from Gallatin that adequate water and sewer service, provided at appropriate rates, will be available to the Project;

Whereas, Gallatin is currently operating a potable water system (together with any repairs to or replacements of the same, referred to as the “Water System”) and a municipal sanitary sewer system (together with any repairs to or updates to or replacement thereof, including without limitation the waste water treatment plant, referred to as the “Sewer System”). The Water System and the Sewer System each have existing capacity which is not being used or reserved for use by others and is substantially in excess of existing and projected demands for water service from the Water System and sewer service from the Sewer System;

Whereas, the Customer has requested Gallatin to make certain commitments concerning the availability of water and sewer service for the Project, to which Gallatin has agreed; and

Whereas, Gallatin is willing and able to serve the Project upon the terms, provisions and conditions hereinafter set out, all of which are acceptable to the Customer.

Now, therefore, for and in consideration of the mutual covenants of the parties, and other good and valuable consideration, the receipt and legal sufficiency of which is hereby acknowledged, Gallatin and the Customer (the “parties”) do hereby agree as follows:

1. The recitals stated above are adopted and made a part of this Contract as if stated verbatim herein.

2. Gallatin represents and warrants to each of the following, as of _____, 2020:

(a) Gallatin possesses the existing legal right under a valid water treatment facility permit issued to Gallatin by the Tennessee Department of Environment and Conservation (“TDEC”) and a valid intake permit from TDEC to take in up to 16,000,000 gallons per day of water for treatment as potable water (the “Permitted Intake”) and that its current water treatment plant has the design capacity to treat and transport up to 16,000,000 gallons per day. Gallatin has no knowledge of any fact, or pending law, rule, regulation, order or directive which would or might cause a reduction in its Permitted Intake. Further, Gallatin has no knowledge of any facts or circumstances that would cause TDEC to reduce Gallatin’s Permitted Intake.

(b) Gallatin has the existing legal right under a valid National Pollutant Discharge Elimination System permit (NPDES Permit No. TN0020141) issued to Gallatin by TDEC to discharge treated wastewater from a wastewater treatment facility at the Cumberland River mile 237.9 (the “Permitted Discharge”) and that its current treatment plant has the organic design capacity to discharge up to 12,500,000 gallons per day and a hydraulic design capacity up to 30,000,000 gallons per day. The Sewer System has the capacity and capability to receive industrial

discharges of the type generated by an evaporative cooling system used at the Project or facilities similar to the Project and other substantially similar industrial discharges. Gallatin has no knowledge of any fact, or pending law, rule, regulation, order or directive which would or might cause a reduction in the capacities committed for use by the Project in Paragraph 11 of this Contract. Further, Gallatin does not know of any facts or circumstances that would cause TDEC to reduce the volume, except to the extent same will not cause a reduction in the capacities committed for use by the Project in Paragraph 11 of this Contract, or significantly change the limits on the quality of Gallatin's Permitted Discharge established in NPDES Permit No. TN0020141.

(c) The Water System has a current operating capacity that exceeds the total of all current and projected demand for water supply service in Gallatin by 7,000,000 gallons per day. The Sewer System has a current operating capacity that exceeds the total of all current and projected demand for sewer services in Gallatin by 7,000,000 gallons per day. Gallatin has the right to allocate to the Project a portion of the excess capacities of the Water System and Sewer System.

(d) Gallatin, through its department, Gallatin Public Utilities, has reviewed sufficient information about the Customer's proposed water and sewer use and the nature and volume of the Customer's proposed discharge to the Sewer System, and has made the determination that, under current law(s), the Customer's discharge (a) does not fall under the Industrial Pretreatment Program of Gallatin, (b) will not require a discharge permit, and (c) does not cause the Customer to become a "Significant Industrial User" under the applicable rules and regulations of the Tennessee Department of Environment and Conservation. Accordingly, no pretreatment of any discharge from the Project will be required. Gallatin has no knowledge of any fact, circumstance

or pending law, rule, regulation, order or directive which would or might cause a reduction in its Permitted Discharge.

3. Subject to the Customer's compliance with the Gallatin Municipal Code, Chapter 17, Articles I-III (the "Regulations"), Gallatin hereby agrees to and will provide water and sewer service to the Project, subject to the provisions of Paragraph 5 of this Contract, and agrees to and will permit the Customer to connect onto Gallatin's water main or mains and to serve the Project and to connect onto Gallatin's sewer main or mains. Gallatin will install the water mains, valves, fittings, pipes, appurtenances, and other water system improvements for water service (hereinafter the "Water System Improvements") to serve the Project and to connect onto Gallatin's sewer main or mains and install the sewer mains, tanks, pumps, electrical connections, lines and other Sewer System improvements (hereinafter the "Sewer System Improvements") for sewer service to the Project, all as described herein and generally depicted on Exhibit "H" attached hereto. Gallatin's obligation to provide water service does not include an obligation to provide an unlimited demand for water for irrigation purposes when such demand exceeds Gallatin's ability to provide such water for irrigation purposes.

4. At its own expense and at no cost and expense to Gallatin, the Customer shall pay all costs incurred to install, lay and construct all Water System Improvements and all Sewer System Improvements, and other equipment and appurtenances specified herein to be installed to serve the Project including all labor and material. The construction and installation of the Water System Improvements and Sewer System Improvements shall be in strict accordance with the plans, specifications and requirements as determined by Gallatin and, to the extent required, as required by the State of Tennessee. All Water System Improvements and Sewer System Improvements shall be located as determined by Gallatin.

5. With respect to the Project, the Customer agrees to pay the following as a condition of Gallatin agreeing to provide water service and sewer service to the Project. It is understood and agreed by the Customer that all costs for Water System Improvements and Sewer System Improvements for the Project required to be paid by the Customer hereunder will be paid in advance of any work being performed, and that the costs as set forth in this Paragraph 5 are estimates based upon information available at the time that the cost estimates were developed. The amount paid to Gallatin in advance by the Customer is the "Construction Payment". The Customer agrees that in the event that the cost estimates are below the actual costs for the Water System Improvements and Sewer System Improvements for the Project, then upon demand the Customer will pay the difference between the estimated cost and the actual cost for the items set forth in this Paragraph 5, subject to the Customer's review and approval, and the right of the Customer to modify the scope of Project as may be desirable to reduce the costs of the Water System Improvements and the Sewer System Improvements. In the event that the actual cost is less than the estimates as set forth herein, then Gallatin will refund to the Customer the difference between the actual cost and the previously paid estimated costs. All work on the Water System Improvements and Sewer System Improvements for the Project will be publicly bid and the bid price by the accepted lowest and best bidder will determine the actual cost that the Customer will be required to pay.

(A) Potable Water Line. The Customer agrees to pay Gallatin the sum of \$967,000.00 for the potable water line necessary to serve the Project, as set forth on Exhibit "B" attached hereto.

(B) Temporary Pump Station. The Improvements (as defined in Paragraph 19) shall include an existing well with a temporary wastewater pump station to serve Tier I Sewer Capacities set forth in Paragraph 11 of this Contract at no additional cost.

(C) Potable Water Storage Tank. The Customer agrees to pay Gallatin the sum of \$2,050,000.00 for the potable water storage tank necessary to serve the Project, as set forth on Exhibit “C” attached hereto.

(D) Wastewater Pump Station. The Customer agrees to pay Gallatin the sum of \$2,178,000.00 for the wastewater pump station necessary to serve the Project, as set forth on Exhibit “D” attached hereto.

(E) Wastewater Force Main. The Customer agrees to pay Gallatin the sum of \$706,525.00 for the wastewater force main necessary to serve the Project, as set forth on Exhibit “E” attached hereto.

(F) Wastewater Gravity Sewer. The Customer agrees to pay Gallatin the sum of \$1,259,900.00 for the wastewater gravity sewer necessary to serve the Project, as set forth on Exhibit “F” attached hereto.

(G) Engineering Design. The Customer agrees to pay Gallatin the sum of \$447,500.00 for the engineering design for the Water System Improvements and Sewer System Improvements necessary to serve the Project.

(H) Engineering During Construction. The Customer agrees to pay Gallatin the sum of \$160,000.00 for the engineering cost incurred during the construction of the Water System Improvements and Sewer System Improvements necessary to serve the Project.

(I) Project Inspection. The Customer agrees to pay Gallatin the sum of \$270,000.00 for the project inspection costs incurred during the construction of the Water System Improvements and Sewer System Improvements that are necessary to serve the Project.

(J) Permits and Environmental Studies. The Customer agrees to pay Gallatin the sum of \$28,000.00 for the permits and environmental studies that are necessary for the Water System Improvements and Sewer System Improvements for the Project.

(K) Surveying. The Customer agrees to pay Gallatin the sum of \$12,000.00 for the surveying that will be necessary for the Water System Improvements and Sewer System Improvements to serve the Project.

(L) Project Contingency. The Customer agrees to pay Gallatin the sum of \$321,075.00 as the anticipated project contingency for the Water System Improvements and Sewer System Improvements necessary to serve the Project as set forth on Exhibit “G” attached hereto, the total amount of the Construction Payment is \$8,400,000.00.

In addition to the foregoing items, Gallatin will, at the Customer’s cost and expense (but subject to the Customer’s review and approval of such cost and expense), provide a connection to the existing water line in Gateway Drive to provide water to the Project for construction use. Such connection shall be provided prior to the date the Customer intends to break ground on the Project as described in a written notice from the Customer delivered to Gallatin.

6. Gallatin shall be under no obligation to undertake any construction of the Water System Improvements and Sewer System Improvements or to furnish any water or sewer service to the Project until the Customer shall have made the Construction Payment. Construction of the anticipated Water System Improvements and Sewer System Improvements for the Project as set forth in Paragraphs 5(A)-(B) shall be completed on or before May 15, 2021, and construction of

the anticipated Water System Improvements and Sewer System Improvements for the Project as set forth in Paragraphs 5(C)-(E) and 5(G)-(K) shall be completed on or before November 1, 2021. Construction of the wastewater gravity sewer as set forth in Paragraph 5(F) above is estimated to be completed in 30 months from payment of the Construction Payment. Said dates are the “Target Completion Dates”.

7. [Intentionally Deleted]

8. The Customer understands and agrees that no third party shall obtain any benefits or rights under this Contract with respect to water or sewer tapping privileges, and no connection shall be made to any customer site until all necessary arrangements have been made in accordance with the Regulations.

9. Gallatin represents and warrants that Gallatin has the full power and authority to enter into this Contract and to perform its obligations hereunder, and this Contract is a valid and binding obligation, enforceable against Gallatin in accordance with its terms. The execution and delivery of this Contract by Gallatin has been validly authorized by all necessary corporate or governmental action and does not conflict with any other contracts entered into by Gallatin.

10. The Customer represents and warrants that as of the date the Customer acquires the Property, if the same occurs, the following will be true and correct: (a) the Customer has the full power and authority to enter into this Contract and to perform its obligations hereunder, (b) this Contract is a valid and binding obligation, enforceable against the Customer in accordance with its terms, (c) entering into this Contract does not conflict with any other contracts entered into by the Customer, and (d) the execution and delivery of this Contract by the Customer has been duly and validly authorized by all necessary corporate action on its part.

11. To ensure that the Water System and the Sewer System will have sufficient capacity to deliver potable water to, and receive wastewater from, the Project as the Project develops, thus ensuring that the Customer may operate and expand the Project as it presently anticipates, Gallatin hereby commits the following water and sewer capacities, as applicable, for use by the Project:

	Construction Water Use		Unit
Avg Day	200,000 (@60PSI or greater)		GPD
First Tier			
	Tier I Water Capacity	Tier I Sewer Capacity	Unit
Avg Day	36,000 (@60PSI or greater)	18,000	GPD
Peak Day	550,000 (@60PSI or greater)	80,000	GPD
Peak Flow	2,500 (@40PSI or greater)	475	GPM
Second Tier			
	Tier II Water Capacity	Tier II Sewer Capacity	Unit
Avg Day	90,000 (@60PSI or greater)	44,000	GPD
Peak Day	1,050,000 (@60PSI or greater)	550,000	GPD
Peak Flow	3,000 (@40PSI or greater)	1,200	GPM

For the avoidance of doubt, the Customer shall not be obligated to use or take any portion of the water and/or sewer capacities set forth above. Nothing contained in this Contract, including without limitation this Paragraph 11, shall be interpreted as obligating or otherwise requiring the Customer to construct any portion of the Project.

The Customer shall give Gallatin at least thirty (30) days' advance written notice of the anticipated commencement of operations at the Project.

12. If the Customer elects to establish redundant and/or backup water sources by (a) drilling water wells on the Property or in connection with the Project for use in a closed heating and cooling system or (b) collecting rainwater on the Property in connection with the Project, the Customer shall have the duty to comply with all Tennessee codes and health regulations which are applicable to use of water from any such wells or systems for the collection of rainwater. Gallatin hereby consents to the establishment of such wells on the Property and the collection of rainwater in accordance with the foregoing sentence, along with the installation, construction and maintenance of infrastructure and equipment related to establishment of redundant and/or backup water supply and sewer resources. The Customer will be required to follow all requirements of Gallatin to ensure that any such wells or water collection systems do not create a cross contamination issue for Gallatin.

13. Subject to the terms and conditions of this Contract, the Customer may, and Gallatin hereby consents to the same, establish infrastructure and equipment related to such establishment of redundant and/or backup sewer resources, wastewater treatment resources, and/or reuse of discharge water, or other advanced water efficiency measures; provided, that the use of any such redundant and/or backup sewer resources shall be in accordance with applicable local, state and federal laws and regulations, as well as the Regulations.

14. (a) Gallatin acknowledges that an essential component of this Contract is to ensure continued water and sewer service to the Project of a quantity and quality that will allow uninterrupted operations of the Project, and further acknowledges that the nature of such operations requires continuous evaporative cooling to protect sensitive equipment required for

essential operations. Gallatin covenants that (i) the daily allocation of water to the Customer shall not be diminished, (ii) Gallatin shall not limit or otherwise reduce or discontinue the flow of water to the Project unless necessary to provide sufficient potable drinking water for the imminent protection of the health and safety of the citizens served by Gallatin, and then only upon reasonable notice to the Customer, and (iii) if Gallatin enacts or amends any water shortage or wastewater curtailment ordinances and such ordinances create classifications of water and wastewater customers the Project shall receive the classification with no lower priority for water usage than any other customer of Gallatin (other than services affecting public health, welfare and safety, including hospitals and booster stations).

(b) Due to the critical, twenty-four (24) hours per day, seven (7) days per week operation of the Project, Gallatin will, at its sole cost and expense (other than the charges for actual services used by the Project), keep and maintain the portions of the Water System and Sewer System that serve the Project and related supporting infrastructure (including, without limitation, the lift station and other improvements to be constructed as provided herein) in good working condition and repair. Notwithstanding anything to the contrary set forth herein, Gallatin shall within twenty-four (24) hours of Gallatin's learning of any Service Interruption (defined below) identify the cause of such Service Interruption and provide written notice of the same to the Customer. A "Service Interruption" shall mean (A) with respect to the Water System, a failure of the Water System to supply to the Project the volume of water reserved under the Water Capacity Guarantee for any period of time or (B) with respect to the Sewer System, the failure of the Sewer System to maintain the capacity reserved by the Sewer Capacity Guarantee for any period of time.

15. Gallatin shall give written notice to the Customer of any facts or circumstances, including any system upgrades or renovations that could result in a reduction in the volume of the

Permitted Intake or the volume or significant change the limits on the quality of Permitted Discharge during the term of this Contract within thirty (30) days of learning of such facts or circumstances or that a reduction in service might result therefrom. Gallatin shall within thirty (30) days of issuance of any new or renewed permits for the Permitted Intake or Permitted Discharge provide a copy of such permit to the Customer.

Gallatin and the Customer agree that the number of gallons discharged into the Sewer System shall be determined by sewer metering and not based on intake. Gallatin agrees that the Customer shall not be charged any application fees, connection fees or systems development fees in connection with receiving service from the Water System and/or the Sewer System, and any requirements of the Regulations to the contrary are hereby waived.

16. Gallatin will comply with all appropriate laws and regulations in connection with setting the appropriate water rate and the appropriate sewer rate for the Customer. Gallatin will not discriminate against the Customer in connection with the setting of rates, fees, or other charges, and Gallatin agrees to charge the Customer a rate that is no higher than the rate charged similarly situated customers of Gallatin.

17. Notwithstanding any provision hereof, the Customer shall at all times have the right to terminate this Contract and require Gallatin to cease the installation and construction of the Water Service Improvements and the Sewer Service Improvements upon ninety (90) days written notice. Upon such termination, Gallatin shall return any unexpended portion of the Construction Payment, less (i) the reasonable costs necessary to wind down any work in progress and to make safe and secure all areas where the Improvements (as defined in Paragraph 19) were being constructed but are incomplete, and (ii) the amounts necessary to pay any amounts due and payable to Gallatin's contractor as of the date of such termination.

18. In the event of a default of this Contract, the non-defaulting party shall provide written notice of the default to the defaulting party and shall specify a period of not less than fifteen (15) days in which the defaulting party shall have a right to cure the default; provided, however, such cure period may be extended if: (a) a default cannot reasonably be cured within the cure period provided in such notice, (b) the curing party notifies the non-defaulting party of such fact by no later than the end of the cure period provided in the notice, (c) the curing party has theretofore been diligent in pursuing the cure and (d) the curing party in such extension notice covenants to (and thereafter actually does) diligently pursue the cure to completion. In the event the defaulting party fails to cure the default, the non-defaulting party may either (i) terminate this Contract and seek damages from the defaulting party or (ii) enforce this Contract by the remedy of damages or specific performance or both.

19. (a) Gallatin shall, and shall cause Gallatin's contractors to, construct the Water System Improvements and the Sewer System Improvements (collectively, the "Improvements"): (i) in accordance with plans and specifications and other Construction Documents approved by the Customer; (ii) in such a manner as to maintain harmonious labor relations and as not to interfere with or delay any work on the Project to be performed by the Customer or the Customer's contractors; and (iii) in such a manner that the Customer and the Customer's contractors shall have reasonable vehicular and pedestrian access to the Property via public rights of way or any easements of record at all times. For purposes of this Contract, the term "Construction Documents" shall mean (A) all construction contracts for any portion of the Improvements, together with any and all supplements, general conditions and addenda thereto, (B) all plans and specifications for the Improvements, including without limitation, design, engineering and development agreements, preliminary and final drawings, shop drawings, working drawings and

models, together with any and all supplements, general conditions and addenda thereto, and (C) any change orders or other written documents that amend, modify or change any documents described in the preceding clauses (A) or (B). All Construction Documents shall be subject to the Customer's prior written consent, which shall not be unreasonably withheld. All contractors and subcontractors performing any work on the Improvements shall be reasonably acceptable to the Customer. Gallatin shall, and shall cause Gallatin's contractors to, act in a commercially reasonable manner and endeavor in good faith to ensure the timely progression of construction of the Improvements. Gallatin shall deliver to the Customer regular updates (not less than biweekly or more often upon request of the Customer) regarding the progress of and schedule for completion of the Improvements.

(b) The Customer shall have the right to retain, at the Customer's expense, a civil engineer (the "Construction Monitor") to (i) review and advise the Customer with respect to all Construction Documents and other matters related to the design, construction, operation and use of the Improvements, (ii) to confirm the adequacy of the budgeted construction costs set forth in Paragraph 5 hereof, and (iii) to monitor the progress of the development and construction of the Improvements. Gallatin acknowledges that (A) the Construction Monitor has been retained by the Customer to act as a consultant, and only as a consultant, to the Customer in connection with the construction of the Improvements, (B) the Construction Monitor shall in no event have any power or authority to make any decision or to give any approval or consent or to do any other thing which is binding upon the Customer, and any such purported decision, approval, consent or act by the Construction Monitor on behalf of the Customer shall be void and of no force or effect, (C) the Customer reserves the right to make any and all decisions required to be made by the Customer under this Contract, and without in any instance being bound or limited in any manner whatsoever

by any opinion expressed or not expressed by the Construction Monitor to the Customer or any other person with respect thereto, (D) the Customer is entitled to the right but not the obligation to rely conclusively on the reports of the Construction Monitor with respect to any matter relating to the construction of the Improvements, and (E) the Customer reserves the right in its sole and absolute discretion to replace the Construction Monitor with another inspector or monitor at any time and without prior notice to or approval by Gallatin. The Construction Monitor shall be granted access at all times to any construction site of the Improvements and to any Construction Documents at such site.

(c) Notwithstanding anything to the contrary contained herein, if construction of any portion of the Improvements is delayed such that the Customer reasonably determines that the completion of the Improvements could be delayed beyond any Target Completion Date, then the Customer may, in its sole discretion, immediately direct Gallatin to take any additional measures (“Extraordinary Measures”) available to Gallatin under any Construction Documents, in which case Gallatin shall undertake such Extraordinary Measures at no cost to the Customer. Extraordinary Measures may include ordering Gallatin Representatives to take corrective measures necessary to expedite the progress of the work, including (i) working additional shifts or overtime, (ii) supplying additional manpower, equipment and facilities and (iii) taking similar measures. Gallatin shall ensure that it has the right to take Extraordinary Measures (including, at least, those described in the preceding sentence) under any Construction Documents. Extraordinary Measures shall continue until the Customer determines that the Improvements are likely to be completed by the Target Completion Date. Gallatin shall cooperate with the Customer in good faith to cause the commencement, progress and completion of the Improvements by the Target Completion Dates.

(d) Notwithstanding anything to the contrary contained herein, if construction of any portion of the Improvements is not being completed in compliance with the terms of this Contract (a “Triggering Event”), then the Customer may, in its sole discretion, immediately upon notice to Gallatin thereof, enter into possession of the Improvements that are the subject of such Triggering Event (the “Subject Infrastructure”) and the real property upon which the Subject Infrastructure is located (collectively with the Subject Infrastructure, the “Subject Property”) and construct, or cause the Customer’s contractors to construct, the Subject Infrastructure. Upon receipt of such notice, Gallatin shall take all steps reasonably necessary to permit the Customer and the Customer’s contractors to: (i) access the Subject Property; and (ii) fully assume all of Gallatin’s rights to property and lands, rights under the Construction Documents and other rights in connection with the construction and completion of the Subject Infrastructure. Gallatin shall (x) ensure that it has the unrestricted right under the Construction Documents to assign the Construction Documents to the Customer, (y) reasonably cooperate with the Customer to transition the construction of the Subject Improvements to the Customer and (z) pay to the Customer the unexpended balance of the Construction Payment. Within a reasonable period of time following the completion of the Subject Infrastructure, the Customer shall transfer to Gallatin the Subject Property for regular operation and maintenance in accordance with this Contract, subject to the inspection and approval by Gallatin, in its reasonable judgment, of the Subject Infrastructure.

20. This Contract may be amended, modified, or supplemented only by the mutual written consent of Gallatin and the Customer, or their successors in interest or assigns.

21. The invalidity or unenforceability of any provision hereof shall not affect the validity or enforceability of the remaining provisions.

22. This Contract contains the entire agreement between the parties regarding the supply of water service and sewer service by Gallatin to the Project. All prior or contemporaneous oral or written drafts of this Contract or other understandings with respect to the subject matter herein between the parties are merged into this Contract. It is the parties' intention to encourage, promote, and aid the Project so that the opportunities and positive community impacts of the Project are fully realized by Gallatin, its citizens, and the Customer.

23. This Contract may be executed in any number of counterparts, each of which when so executed and delivered (by electric means or otherwise) shall be deemed an original, and it shall not be necessary in making proof of this Contract to produce or account for more than one such fully executed counterpart.

24. This Contract is governed by and shall be construed in accordance with the laws of the State of Tennessee.

25. All notices or other communications required or permitted to be served hereunder shall be deemed served in accordance with this Contract if the notice is: (a) delivered by personal delivery; (b) mailed in a sealed wrapper and deposited in the United States mail, certified mail, return receipt requested, postage prepaid (with delivery conclusively presumed to occur on the third (3rd) business day following such deposit absent evidence of actual failure of delivery) or (c) deposited with a national overnight courier service for next day delivery that retains receipts of its deliveries, properly addressed (with delivery conclusively presumed to occur on the next business day following such deposit absent evidence of actual failure of deliver), as follows:

City: _____

Customer: Woolhawk LLC
c/o Waller Lansden Dortch & Davis, LLP

511 Union Street, Suite 2700
Nashville, Tennessee 37219
Attention: Robert R. Campbell, Jr.

The parties, by written notice given to the other, may designate any further or different names or addresses to which all notices or other communications shall be sent.

26. The Customer may assign its rights and obligations under this Contract (a) to any affiliate controlling, controlled by or under common control with the Customer (and upon such assignment the assigning entity shall be relieved of its covenants, commitments and obligations hereunder) or (b) to subsequent owners of all or any portion of the Property, provided that no assignment of only a portion of the Property shall relieve the Customer's obligation with respect to the portion of the Property remaining titled in the Customer without the written consent of Gallatin. In the event that the Customer sells the Property in its entirety and assigns its rights and obligations hereunder to its successor in title to the Property, then the Customer shall be relieved of all of its covenants, commitments and obligations hereunder.

27. This Contract does not abrogate any rights established or preserved by any applicable law or by that certain Development Agreement between Gallatin and the Customer dated on or about the date hereof, by any other agreement or contract executed by Gallatin and the Customer in connection with the Project, or that have vested or may vest pursuant to common law or otherwise.

28. The parties agree that each party and its counsel have reviewed and revised this Contract and that any rule of construction to the effect that ambiguities are to be resolved against the drafting party shall not apply in the interpretation of this Contract or any amendments or exhibits hereto.

29. The Customer shall have sixty (60) days from the date of delivery of this Contract to the Customer to execute this Contract. After that date the offer to provide water and sewer service under the conditions set forth herein shall be withdrawn.

30. If the Customer acquires any additional property within the municipal limits of Gallatin (or agreed between the parties to be annexed into same) and within a one-half (1/2)-mile radius of the Property (as same is then constituted), such additional property shall be deemed a part of the "Property".

31. This Contract shall run with the Property and any portion thereof as it may be subdivided or recombined. The Customer may record a memorandum of this Contract setting forth the existence of this Contract with the office of the Register of Deeds for Sumner County, Tennessee.

32. GALLATIN AND THE CUSTOMER EACH HEREBY WAIVES, TO THE FULLEST EXTENT PERMITTED BY LAW, ANY RIGHT TO TRIAL BY JURY OF ANY CLAIM, DEMAND, ACTION, OR CAUSE OF ACTION (I) ARISING UNDER THIS CONTRACT OR (II) IN ANY WAY CONNECTED WITH OR RELATED OR INCIDENTAL TO THIS CONTRACT OR ANY OF THE TRANSACTIONS RELATED HERETO. GALLATIN AND CUSTOMER EACH AGREE AND CONSENT THAT ANY SUCH CLAIM, DEMAND, ACTION, OR CAUSE OF ACTION SHALL BE DECIDED BY COURT TRIAL WITHOUT A JURY AND THAT EITHER OF THEM MAY FILE A COPY OF THIS AGREEMENT WITH ANY COURT AS EVIDENCE OF SUCH WAIVER.

[Signatures appear on following page]

In Witness Whereof, the parties have entered into this Contract as of the day and date first above written.

Gallatin:

THE CITY OF GALLATIN,
a Tennessee municipal corporation

By: _____
Name: _____
Title: _____

Customer:

WOOLHAWK LLC,
a Delaware limited liability company

By: _____
Name: _____
Title: _____

State of Tennessee)
)
County of Sumner)

Before me, a Notary Public in and for said County and State aforesaid, personally appeared, with whom I am personally acquainted, (or proved to me on the basis of satisfactory evidence), and who, upon oath, acknowledged himself to be the _____ of the City of Gallatin, Tennessee, a municipal corporation, and that he as such executed the foregoing instrument for the purpose therein contained, by signing the name of the City of Gallatin by himself as the _____.

Witness my hand and official seal at Gallatin, Tennessee on this the _____ day of _____, 2020.

NOTARY PUBLIC

My Commission Expires: _____

State of _____)
)
County of _____)

Before me, a Notary Public in and for said County and State aforesaid, personally appeared with whom I am personally acquainted (or proved to me on the basis of satisfactory evidence), and who, upon oath, acknowledged herself to be the _____ of Woolhawk LLC, the within named bargainor, a Delaware limited liability company, and that he as such _____ executed the foregoing instrument for the purpose therein contained, by signing the name of Woolhawk LLC by himself as the _____.

Witness my hand and official seal at _____ on this the _____ day of _____, 2020.

NOTARY PUBLIC

My Commission Expires: _____

EXHIBIT A



RECORD DESCRIPTION

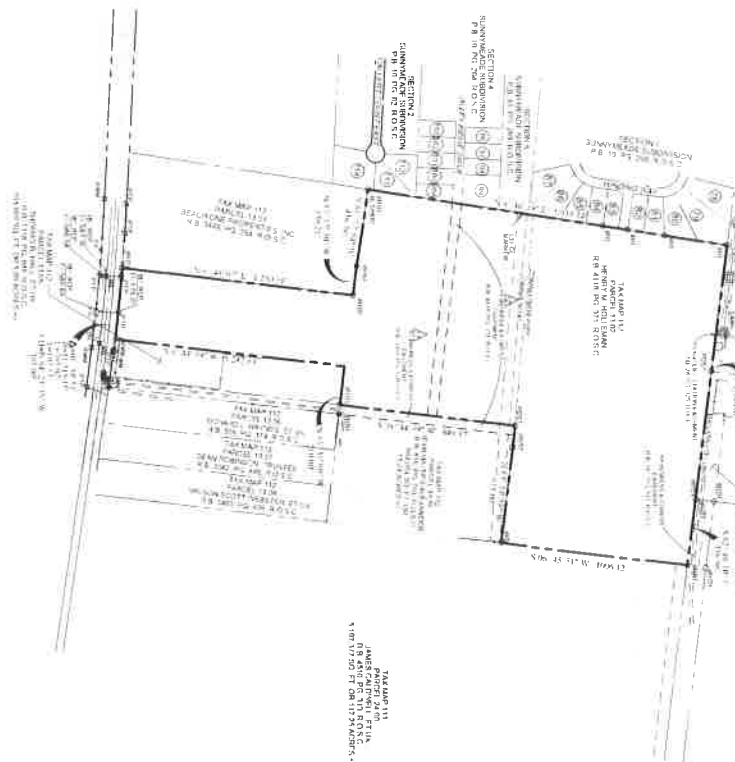
Record Description text block containing survey details and references.

GNSS POSTING METADATA

GNSS POSTING METADATA text block containing survey details.

GALLATIUS CHARTER

GALLATIUS CHARTER text block containing survey details.



AREA= 3,347,894 SQ. FT., OR 76.68 ACRE +/-



NOTES

NOTES text block containing various survey notes and legal disclaimers.

SCHEDULE B - SECTION 1 EXCEPTIONS

SCHEDULE B - SECTION 1 EXCEPTIONS text block containing survey details.

DEED REFERENCE

DEED REFERENCE text block containing survey details.

PROPERTY MAP REFERENCE

PROPERTY MAP REFERENCE text block containing survey details.

SURVEYORS CERTIFICATE

SURVEYORS CERTIFICATE text block containing survey details.

HENRY M. HOLLEMAN PROPERTY
ALTANSPS LAND TITLE SURVEY
STATE HIGHWAY 25 (HARTSVILLE PIKE)
2ND CIVIL DISTRICT
GALLATIUS SUMNER COUNTY TENNESSEE

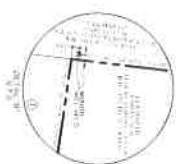




12/17/2019
2:36:16 PM
Bluebeam PDF
Application

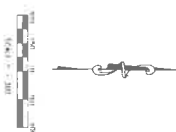
GNSS POSITIONING METADATA

Date of survey: Jan. 11-12, 2018
 Ethical approval: Health & Human Rights, 2017, on average
 Publications: 1 article used, 100% CRR, Network
 Social media: Facebook (1), Instagram
 (combined post/articles), No video content
 100%, All surveys fit criteria (Table 1)



PARCEL 24 AREA= 5,107.377 SQ. FT., OR 117.25 ACRES +/-
PARCEL 118 AREA= 44,866 SQ. FT., OR 1.03 ACRE +/-
TOTAL AREA = 5,152,243 SQ. FT. OR 118.28 ACRES +/-

100	101	102	103	104	105	106	107	108	109	110	111	112	113	114	115	116	117	118	119	120	121	122	123	124	125	126	127	128	129	130	131	132	133	134	135	136	137	138	139	140	141	142	143	144	145	146	147	148	149	150	151	152	153	154	155	156	157	158	159	160	161	162	163	164	165	166	167	168	169	170	171	172	173	174	175	176	177	178	179	180	181	182	183	184	185	186	187	188	189	190	191	192	193	194	195	196	197	198	199	200
100	101	102	103	104	105	106	107	108	109	110	111	112	113	114	115	116	117	118	119	120	121	122	123	124	125	126	127	128	129	130	131	132	133	134	135	136	137	138	139	140	141	142	143	144	145	146	147	148	149	150	151	152	153	154	155	156	157	158	159	160	161	162	163	164	165	166	167	168	169	170	171	172	173	174	175	176	177	178	179	180	181	182	183	184	185	186	187	188	189	190	191	192	193	194	195	196	197	198	199	200

[illegible]

Δ is defined as $\Delta = \text{Page 11} - \text{Page 2} - \text{Page 70}$ in the *Argentine*, Δ_{US} as $\Delta = \text{Page 11} - \text{Page 2} - \text{Page 70}$ in the *US*, and Δ_{UK} as $\Delta = \text{Page 11} - \text{Page 2} - \text{Page 70}$ in the *UK*.

2140 111 PARCELS 24 AND 118 BEING PROPOSED TO BE
CALDWELL 170A OF RECORD IN RECORD BOOK 117, PAGE 107. R 10 S 1

REINING MARCELS IN THE 1980S AS SMOKING ON SUMMER COUNTRY PROPERTIES
A 1980 NJ '11

[illegible]

Diagram illustrating a DNA loop structure. The top strand is labeled "PARENTAL DNA" and the bottom strand is labeled "DAUGHTER DNA". A loop is formed in the top strand, labeled "DNA LOOP".

FILE NO 36MA900

Caldwell Property

ALTA/NSPS LAND TITLE SURVEY
STATE HIGHWAY 25 (HARTSVILLE PIKE)

SECOND CIVIL DISTRICT
GALLATIN SUMNER COUNTY, TENNESSEE

05/05/2020 City Council Meeting Agenda-Page 50

BARGE
DESIGN SOLUTIONS

444 Third Avenue, New York, NY 10016, USA
Tel: 212 692 4000 Fax: 212 692 4001



VICINITY MAP
(N.T.S.)

RECORD DESCRIPTION

TAM MAP 11
PARCEL 1

TAM MAP 11
PARCEL 2



TOTAL AREA: 46,000 SQ. FT. OR 1.04 ACRES
LESS RIGHTS LAKE: 10,000 SQ. FT. OR 0.23 ACRES
NET AREA: 36,000 SQ. FT. OR 0.81 ACRES

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

NO.	DESCRIPTION	ACRES	DATE
1	1.04 ACRES	1.04	1/1/20
2	0.23 ACRES	0.23	1/1/20
3	0.81 ACRES	0.81	1/1/20

ARGENT TRUST COMPANY PROPERTY
ALTA/NPS LAND TITLE SURVEY
GATEWAY DRIVE, STATE HIGHWAY 25 & BRIGHTS LANE
2ND CIVIL DISTRICT
GALLATIN, SUMNER COUNTY, TENNESSEE





PROPERTY MAP REFERENCE

DEED REFERENCE

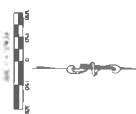
DEPARTMENT OF CHEMISTRY, UNIVERSITY OF CALIFORNIA, RIVERSIDE, CALIF. 92506
RECEIVED MAY 17, 1967

SURVEYOR'S CERTIFICATE
71)

1990-1991, 1992-1993, 1994-1995, 1996-1997, 1998-1999, 2000-2001, 2002-2003, 2004-2005, 2006-2007, 2008-2009, 2010-2011, 2012-2013, 2014-2015, 2016-2017, 2018-2019, 2020-2021, 2022-2023, 2024-2025, 2026-2027, 2028-2029, 2030-2031, 2032-2033, 2034-2035, 2036-2037, 2038-2039, 2040-2041, 2042-2043, 2044-2045, 2046-2047, 2048-2049, 2050-2051, 2052-2053, 2054-2055, 2056-2057, 2058-2059, 2060-2061, 2062-2063, 2064-2065, 2066-2067, 2068-2069, 2070-2071, 2072-2073, 2074-2075, 2076-2077, 2078-2079, 2080-2081, 2082-2083, 2084-2085, 2086-2087, 2088-2089, 2090-2091, 2092-2093, 2094-2095, 2096-2097, 2098-2099, 2100-2101, 2102-2103, 2104-2105, 2106-2107, 2108-2109, 2110-2111, 2112-2113, 2114-2115, 2116-2117, 2118-2119, 2120-2121, 2122-2123, 2124-2125, 2126-2127, 2128-2129, 2130-2131, 2132-2133, 2134-2135, 2136-2137, 2138-2139, 2140-2141, 2142-2143, 2144-2145, 2146-2147, 2148-2149, 2150-2151, 2152-2153, 2154-2155, 2156-2157, 2158-2159, 2160-2161, 2162-2163, 2164-2165, 2166-2167, 2168-2169, 2170-2171, 2172-2173, 2174-2175, 2176-2177, 2178-2179, 2180-2181, 2182-2183, 2184-2185, 2186-2187, 2188-2189, 2190-2191, 2192-2193, 2194-2195, 2196-2197, 2198-2199, 2200-2201, 2202-2203, 2204-2205, 2206-2207, 2208-2209, 2210-2211, 2212-2213, 2214-2215, 2216-2217, 2218-2219, 2220-2221, 2222-2223, 2224-2225, 2226-2227, 2228-2229, 2230-2231, 2232-2233, 2234-2235, 2236-2237, 2238-2239, 2240-2241, 2242-2243, 2244-2245, 2246-2247, 2248-2249, 2250-2251, 2252-2253, 2254-2255, 2256-2257, 2258-2259, 2260-2261, 2262-2263, 2264-2265, 2266-2267, 2268-2269, 2270-2271, 2272-2273, 2274-2275, 2276-2277, 2278-2279, 2280-2281, 2282-2283, 2284-2285, 2286-2287, 2288-2289, 2290-2291, 2292-2293, 2294-2295, 2296-2297, 2298-2299, 2300-2301, 2302-2303, 2304-2305, 2306-2307, 2308-2309, 2310-2311, 2312-2313, 2314-2315, 2316-2317, 2318-2319, 2320-2321, 2322-2323, 2324-2325, 2326-2327, 2328-2329, 2330-2331, 2332-2333, 2334-2335, 2336-2337, 2338-2339, 2340-2341, 2342-2343, 2344-2345, 2346-2347, 2348-2349, 2350-2351, 2352-2353, 2354-2355, 2356-2357, 2358-2359, 2360-2361, 2362-2363, 2364-2365, 2366-2367, 2368-2369, 2370-2371, 2372-2373, 2374-2375, 2376-2377, 2378-2379, 2380-2381, 2382-2383, 2384-2385, 2386-2387, 2388-2389, 2390-2391, 2392-2393, 2394-2395, 2396-2397, 2398-2399, 2400-2401, 2402-2403, 2404-2405, 2406-2407, 2408-2409, 2410-2411, 2412-2413, 2414-2415, 2416-2417, 2418-2419, 2420-2421, 2422-2423, 2424-2425, 2426-2427, 2428-2429, 2430-2431, 2432-2433, 2434-2435, 2436-2437, 2438-2439, 2440-2441, 2442-2443, 2444-2445, 2446-2447, 2448-2449, 2450-2451, 2452-2453, 2454-2455, 2456-2457, 2458-2459, 2460-2461, 2462-2463, 2464-2465, 2466-2467, 2468-2469, 2470-2471, 2472-2473, 2474-2475, 2476-2477, 2478-2479, 2480-2481, 2482-2483, 2484-2485, 2486-2487, 2488-2489, 2490-2491, 2492-2493, 2494-2495, 2496-2497, 2498-2499, 2500-2501, 2502-2503, 2504-2505, 2506-2507, 2508-2509, 2510-2511, 2512-2513, 2514-2515, 2516-2517, 2518-2519, 2520-2521, 2522-2523, 2524-2525, 2526-2527, 2528-2529, 2530-2531, 2532-2533, 2534-2535, 2536-2537, 2538-2539, 2540-2541, 2542-2543, 2544-2545, 2546-2547, 2548-2549, 2550-2551, 2552-2553, 2554-2555, 2556-2557, 2558-2559, 2560-2561, 2562-2563, 2564-2565, 2566-2567, 2568-2569, 2570-2571, 2572-2573, 2574-2575, 2576-2577, 2578-2579, 2580-2581, 2582-2583, 2584-2585, 2586-2587, 2588-2589, 2590-2591, 2592-2593, 2594-2595, 2596-2597, 2598-2599, 2600-2601, 2602-2603, 2604-2605, 2606-2607, 2608-2609, 2610-2611, 2612-2613, 2614-2615, 2616-2617, 2618-2619, 2620-2621, 2622-2623, 2624-2625, 2626-2627, 2628-2629, 2630-2631, 2632-2633, 2634-2635, 2636-2637, 2638-2639, 2640-2641, 2642-2643, 2644-2645, 2646-2647, 2648-2649, 2650-2651, 2652-2653, 2654-2655, 2656-2657, 2658-2659, 2660-2661, 2662-2663, 2664-2665, 2666-2667, 2668-2669, 2670-2671, 2672-2673, 2674-2675, 2676-2677, 2678-2679, 2680-2681, 2682-2683, 2684-2685, 2686-2687, 2688-2689, 2690-2691, 2692-2693, 2694-2695, 2696-2697, 2698-2699, 2700-2701, 2702-2703, 2704-2705, 2706-2707, 2708-2709, 2710-2711, 2712-2713, 2714-2715, 2716-2717, 2718-2719, 2720-2721, 2722-2723, 2724-2725, 2726-2727, 2728-2729, 2730-2731, 2732-2733, 27

and the $\mathcal{H}_2$ norm of the system is

(a) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.01}{1-0.01} \right) \approx 0.01$
 (b) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.02}{1-0.02} \right) \approx 0.02$
 (c) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.03}{1-0.03} \right) \approx 0.03$
 (d) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.04}{1-0.04} \right) \approx 0.04$
 (e) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.05}{1-0.05} \right) \approx 0.05$
 (f) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.06}{1-0.06} \right) \approx 0.06$
 (g) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.07}{1-0.07} \right) \approx 0.07$
 (h) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.08}{1-0.08} \right) \approx 0.08$
 (i) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.09}{1-0.09} \right) \approx 0.09$
 (j) $\frac{1}{2} \ln \left(\frac{1+x}{1-x} \right) = \frac{1}{2} \ln \left(\frac{1+0.10}{1-0.10} \right) \approx 0.10$



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SCHEDULE B - SECTION II EXCEPTIONS

A new study suggests that the use of a computerized system to monitor and control the ventilation of patients in intensive care units (ICUs) may reduce the risk of ventilator-associated pneumonia (VAP) and other complications. The study, conducted by researchers at the University of California, San Francisco (UCSF), found that the use of a computerized system called "Ventilator-Associated Pneumonia Prevention System" (VAPPS) significantly reduced the incidence of VAP and other complications compared to standard care. The study was published in the *Journal of Intensive Care Medicine*.

BARGE
DESIGN SOLUTIONS

GREGORY REAL ESTATE, LLC
ALTA/NSPS LAND TITLE SURVEY
GATEWAY DRIVE, STATE HIGHWAY 25
& BRIGHTS LANE
2ND OF 4 LOTS DISTRICT 05/

05/05/2020 City Council Meeting Agenda-Page 52

GNSS POSITIONING METADATA

AREA= 10,253,658 SQ. FT., OR 235.39 ACRE +/-

Chlorine

EXHIBIT B

CITY OF GALLATIN
INDUSTRIAL PARK - POTABLE WATER LINE
ENGINEER'S CONSTRUCTION COST ESTIMATE

ITEM NO	DESCRIPTION	UNIT PRICE	QUANTITY	AMOUNT
1	FURNISH & INSTALL 12" DUCTILE IRON WATER LINE	77.00	10,250 L.F.	\$ 789,250.00
2	FURNISH & INSTALL 6" DUCTILE IRON WATER LINE	55.00	200 L.F.	11,000.00
3.	FURNISH & INSTALL 12" GATE VALVE	2,600.00	8 EA.	20,800.00
4	FURNISH & INSTALL 6" GATE VALVE	900.00	7 EA.	6,300.00
5	FURNISH & INSTALL COMBINATION AIR & VACUUM RELEASE VALVE ASSEMBLY	2,300.00	1 EA.	2,300.00
6	FURNISH & INSTALL CONNECTION TO EXISTING WATER LINE	2,500.00	2 EA.	5,000.00
7	FURNISH & INSTALL CONCRETE VALVE BOXES	125.00	60 V.F.	7,500.00
8	FURNISH & INSTALL CLASS "B" CONCRETE	200.00	55 C.Y.	11,000.00
9	FURNISH & INSTALL CRUSHED STONE	20.00	250 TN	5,000.00
10	FURNISH & INSTALL D.I.M.J. FITTINGS	5.00	3,500 LB.	17,500.00
11	FURNISH & INSTALL FIRE HYDRANT	3,200.00	7 EA.	22,400.00
12	FURNISH & INSTALL FIRE HYDRANT EXTENSION	350.00	10 V.F.	3,500.00
13	FURNISH & INSTALL 12" MEGALUG RESTRAINED JOINT	120.00	100 EA.	12,000.00
14	FURNISH & INSTALL 6" MEGALUG RESTRAINED JOINT	55.00	30 EA.	1,650.00
15	FURNISH & INSTALL SEDIMENT & EROSION CONTROL	10,800.00	1 L.S.	10,800.00
16	MAIN LINE CLEAN-UP	4.00	10,250 L.F.	41,000.00
TOTAL ESTIMATED CONSTRUCTION COST				<u>\$ 967,000.00</u>

EXHIBIT C

**CITY OF GALLATIN
INDUSTRIAL PARK WATER STORAGE TANK
ENGINEER'S CONSTRUCTION COST ESTIMATE**

Mobilization and Erosion Control	\$ 32,000.00
Final Grading and Stone Tank Pad	31,000.00
Under Tank Piping	102,000.00
Valve and Meter Vaults	331,000.00
Exterior Ductile Iron Piping	38,000.00
Final Grading, Seeding and Mulch	36,000.00
Electrical/Instrumentation - Panels & Vaults	45,000.00
Interior Piping	117,000.00
Geotechnical	5,000.00
Tank Painting	48,000.00
Tank-Shop Drawings Development	117,000.00
Tank Floor	286,000.00
Tank Core Walls	280,000.00
Tank Dome	267,000.00
Tank Prestress & Cover Coat	215,000.00
Tank Accessories	100,000.00

Total Estimated Construction Cost \$ 2,050,000.00

EXHIBIT D

CITY OF GALLATIN
INDUSTRIAL PARK - WASTEWATER PUMP STATION
ENGINEER'S CONSTRUCTION COST ESTIMATE

Mobilization/Bonds & Insurance	\$ 82,000.00
Road & Parking Area	10,000.00
Drill & Blast	74,000.00
Excavation	186,000.00
Backfill	31,000.00
Concrete	414,000.00
Rebar	124,000.00
Masonry	62,000.00
Trusses	43,000.00
Roofing	16,000.00
Misc. Metals	30,000.00
Hatches & Doors	39,000.00
Piping	155,000.00
Valves	72,000.00
Pumps & VFDs	366,000.00
Flowmeters	16,000.00
Stand-by Generator	73,000.00
Paving/Curb	10,000.00
Paint	22,000.00
Electrical	323,000.00
HVAC	30,000.00

Total Estimated Construction Cost \$ 2,178,000.00

EXHIBIT E

CITY OF GALLATIN
SEWER FORCE MAIN
ENGINEER'S CONSTRUCTION COST ESTIMATE

ITEM NO	DESCRIPTION	QUANTITY	UNIT PRICE	AMOUNT
1	FURNISH & INSTALL 12" FORCE MAIN	7,800 L.F.	75.00	\$ 585,000.00
2	FURNISH & INSTALL 12" FORCE MAIN @ ROAD CROSSINGS	2 EA.	6,000.00	12,000.00
3	FURNISH & INSTALL 12" PLUG VALVE	3 EA.	7,000.00	21,000.00
4	FURNISH & INSTALL COMBINATION AIR & VACUUM RELEASE VALVE ASSEMBLY	2 EA.	5,500.00	11,000.00
5	FURNISH & INSTALL 12" FORCE MAIN CONNECTION AT MANHOLE	1 EA.	1,500.00	1,500.00
6	FURNISH & INSTALL CONCRETE VALVE BOXES	3 EA.	125.00	375.00
7	FURNISH & INSTALL CLASS "B" CONCRETE	75 C.Y.	200.00	15,000.00
8	FURNISH & INSTALL CRUSHED STONE	125 TN	20.00	15,000.00
9	FURNISH & INSTALL D.I.M.J. F	650 TN	6.00	3,900.00
10	FURNISH & INSTALL D.I.M.J. FITTINGS	15 C.Y.	150.00	2,250.00
11	FURNISH & INSTALL FIRE HYDRANT	40 S.Y.	55.00	2,200.00
12	FURNISH & INSTALL FIRE HYDRANT EXTENSION	40 S.Y.	90.00	3,600.00
13	FURNISH & INSTALL 12" MEGALUG RESTRAINED JOINT	10 EA.	120.00	1,200.00
14	FURNISH & INSTALL 6" MEGALUG RESTRAINED JOINT	1 L.S.	6,000.00	6,000.00
15	MAIN LINE CLEAN-UP	7,800 L.F.	5.00	39,000.00

TOTAL ESTIMATED CONSTRUCTION COST

\$ 706,525.00

EXHIBIT F

CITY OF GALLATIN

SANITARY SEWER GRAVITY LINE

ENGINEER'S CONSTRUCTION COST ESTIMATE

ITEM NO	DESCRIPTION	QUANTITY	UNIT PRICE	AMOUNT
1	18" PVC GRAVITY SEWER @ 0 to 6'	3,650 L.F.	120.00	\$ 438,000.00
2	18" PVC GRAVITY SEWER @ 6 to 8'	2,500 L.F.	128.00	320,000.00
3.	18" PVC GRAVITY SEWER @ 8 to 10'	800 L.F.	138.00	110,400.00
4	18" PVC GRAVITY SEWER @ 10 to 12'	500 L.F.	150.00	75,000.00
5	18" PVC GRAVITY SEWER @ 12 to 14'	250 L.F.	168.00	42,000.00
6	STANDARD 4' Ø MANHOLE	35 EA.	3,000.00	105,000.00
7	EXTRA MANHOLE (4' Ø) DEPTH >6'	90 V.F.	250.00	22,500.00
8	MANHOLE VENT ASSEMBLY	1 EA.	3,500.00	3,500.00
9	MANHOLE WATERTIGHT FRAME & COVER	25 EA.	600.00	15,000.00
10	CRUSHED STONE	500 TN	20.00	10,000.00
11	CLASS "B" CONCRETE	10 C.Y.	200.00	2,000.00
12	FURNISH & INSTALL 2" TDOT 411 "E" MIX PAVEMENT REPLACEMENT	160 S.Y.	55.00	8,800.00
13	FURNISH & INSTALL 8" TDOT 307 "B" MODIFIED BINDER	160 S.Y.	90.00	14,400.00
14	MAIN LINE CONNECTIONS	4 EA.	2,500.00	10,000.00
15	FURNISH & INSTALL SEDIMENT & EROSION CONTROL	1 L.S.	14,000.00	14,000.00
16	MAIN LINE CLEAN-UP	7,700 L.F.	9.00	69,300.00
TOTAL ESTIMATED CONSTRUCTION COST				<u>\$ 1,259,900.00</u>

EXHIBIT G

CITY OF GALLATIN

INDUSTRIAL PARK FACILITIES

PRELIMINARY COST ESTIMATE

WATER & SEWER ADDITIONS

August 8, 2018

CONSTRUCTION

<i>POTABLE WATER LINE</i>	\$ 967,000.00
<i>POTABLE WATER STORAGE TANK</i>	2,050,000.00
<i>WASTEWATER PUMP STATION</i>	2,178,000.00
<i>WASTEWATER FORCE MAIN</i>	706,525.00
<i>WASTEWATER GRAVITY SEWER</i>	<u>1,259,900.00</u>
TOTAL ESTIMATED CONSTRUCTION COST	\$ 7,161,425.00

ENGINEERING DESIGN	447,500.00
ENGINEERING DURING CONSTRUCTION	160,000.00
INSPECTION	270,000.00
PERMITS & ENVIRONMENTAL STUDIES	28,000.00
SURVEYING	12,000.00
PROJECT CONTINGENCY	<u>321,075.00</u>
TOTAL ESTIMATED PROJECT COST	<u><u>\$ 8,400,000.00</u></u>

EXHIBIT H



GENERAL NOTES

SHEET NOTES

- 1. WATER LINES TO CONNECT TO EXISTING SANITARY LIFT STATION
- 2. SANITARY LINES TO CONNECT TO PROPOSED CPU SANITARY LIFT STATION
- 3. PROPOSED SANITARY LIFT STATION
- 4. PROPOSED SANITARY LIFT STATION
- 5. PROPOSED SANITARY LIFT STATION

SHEET LEGEND

Water Line
Sanitary Line
Proposed Sanitary Lift Station

KEY PLAN



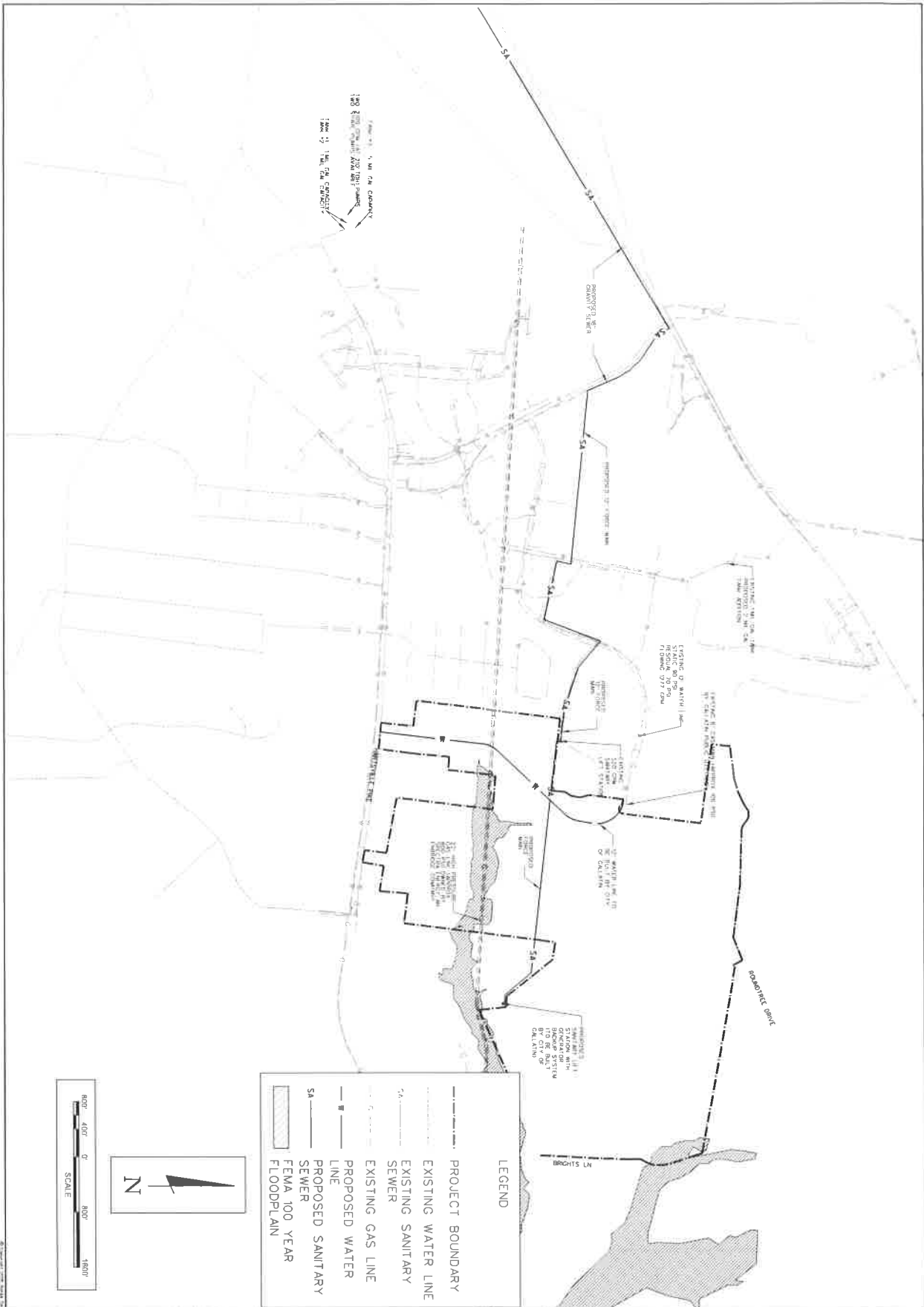
NOT FOR CONSTRUCTION

PROJECT:

DATA CENTER

DWG TITLE
WATER & SEWER
EXHIBIT

DWG NO.
EXD-1





DRAFT

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**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 28, 2020

DEPARTMENT: **Economic Development**

AGENDA #

SUBJECT:

Utility Agreement

SUMMARY:

Establishing utility service agreement for Project Wool Hawk

RECOMMENDATION:

ATTACHMENT:

☐
☐

Resolution
Ordinance

☐
☐

Correspondence
Contract

☐
☐

Bid Tabulation
Other

Approved
Rejected
Deferred

☒
☐
☐

Notes: